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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**PLAINTIFF'S CONSOLIDATED BRIEF
RE: FRAUD ON THE COURT;
ESTOPPEL; AND EXHIBIT RECORD**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

1 **PLAINTIFF’S CONSOLIDATED BRIEF RE: FRAUD ON THE COURT;**
2 **ESTOPPEL; AND EXHIBIT-BY-EXHIBIT ESTOPPEL RECORD**
3

4 **I. THE “SMOKING-GUN” PREAMBLE — WHAT THIS OPPOSITION**
5 **IS ABOUT**

6 This Opposition is grounded in the certified record of a fraud perpetrated upon this Court. At the
7 heart of this case is a sequence of events where defense counsel, acting as officers of the court,
8 procured a series of structural rulings against Plaintiff by representing that they had never received
9 critical evidence—representations that the record now proves were false.

10 **I.A. THE COURT’S ARTICULATED RELIANCE**

11 On February 28, 2025, the Court explicitly stated the basis for the credibility it had afforded the
12 defense and the subsequent rulings against Plaintiff:

13 “I’m not going to question a lawyer’s remarks regarding what they have and don’t have.
14 They are an officer of the Court, and they are supposed to conduct themselves appropri-
15 ately before the Court. If they are not, there are other sanctions that they could suffer
16 here. So far I haven’t heard or seen anything on the part of the current law firm which
17 tells me that they have conducted themselves improperly.” — The Court (Garrett L.
18 Wong), Hr’g Tr. Feb. 28, 2025, pp. 291:26–292:7.

19 **I.B. THE RULINGS PROCURED FROM THAT RELIANCE**

20 Based on this misplaced reliance on defense counsel’s representations of non-receipt, the Court
21 issued the following structural rulings that stripped Plaintiff of his ability to present his case:

- 22 • **MIL No. 1 Denied** (Jan. 27, p. 41:3–11)
- 23 • **911 CDs Excluded** (Jan. 27, p. 38:22–25)
- 24 • **911 Transcripts “Never Admitted”** (Jan. 27, p. 39:18–24)
- 25 • **Continuance Denied** (Feb. 18, p. 181)
- 26 • **§ 473 Relief Rejected** (Feb. 18, p. 181:20–25)
- 27 • **Burden-Shift Imposed** (Feb. 28, p. 293:1–3)

- **Supplemental Report Excluded** (RT 7, p. 156:24–28)

I.C. THE ADMISSION THAT PROVED THE MISREPRESENTATION

On the seventh day of trial, after months of categorical denials, defense counsel admitted possession:

“Sure. They were provided by Dolan. He has had them for whatever, sure.” — Priya D. Navaratnasingham, RT 7 (Apr. 16, 2025), p. 213, ll. 13–15.

II. THE NINE-POINT EVIDENTIARY CHAIN OF DEFENSE RECEIPT

The following points document that the denials of receipt were irreconcilable with the actual state of the defense’s file and knowledge:

(a) Aug. 18, 2022 — Service of 911 audio (Dolan to defense counsel)

- **Proof artifact:** Service of 911 audio by Dolan to defense counsel
- **Pincite / Source:** Jessup testimony, Hr’g Tr. Feb. 18, 2025, pp. 139–140
- **Who had notice:** Chambers / CSK

(b) Aug. 18, 2022 — Rosario deposition (Chambers present)

- **Proof artifact:** Rosario deposition — Chambers present
- **Pincite / Source:** Rosario depo tr.
- **Who had notice:** Chambers

(c) Sept. 30, 2022 — Abdelhalim deposition (Chambers present)

- **Proof artifact:** Abdelhalim deposition — Chambers present
- **Pincite / Source:** Abdelhalim depo tr.
- **Who had notice:** Chambers

(d) May 4, 2023 — CSK → PSA file transfer (Substitution of Attorney)

- **Proof artifact:** CSK → PSA file transfer (Sub of Atty)
- **Pincite / Source:** CT record
- **Who had notice:** CSK → PSA

(e) Feb. 1, 2024 — PSA subpoena for identical materials

- **Proof artifact:** PSA subpoena for identical materials

- **Pincite / Source:** Order CA1147102-021
 - **Who had notice:** PSA
 - (f) **Feb. 26, 2024 — PSA receives production from SFPD**
 - **Proof artifact:** PSA receives production from SFPD
 - **Pincite / Source:** Report 210079556
 - **Who had notice:** PSA
 - (g) **Sept. 9, 2024 — FROG/SROG (CAD log identification)**
 - **Proof artifact:** Plaintiff's FROG/SROG identifying CAD log
 - **Pincite / Source:** FROG/SROG records
 - **Who had notice:** PSA
 - (h) **Feb. 18, 2025 — Jessup (“since 2021”)**
 - **Proof artifact:** Jessup testifies “since 2021”
 - **Pincite / Source:** Hr’g Tr. Feb. 18, 2025, p. 139:11
 - **Who had notice:** PSA
 - (i) **Apr. 16, 2025 — Admission of receipt**
 - **Proof artifact:** **ADMISSION OF RECEIPT**
 - **Pincite / Source:** RT 7, 213:13-15
 - **Who had notice:** PSA
-

III. THE LAWS-BROKEN MATRIX

- (a) **Bus. & Prof. Code § 6068(d)**
 - **Provision:** Duty not to mislead judge
 - **Defense conduct:** Jan 27, Feb 18 denials re receipt
- (b) **Bus. & Prof. Code § 6128(a)**
 - **Provision:** Attorney deceit / collusion
 - **Defense conduct:** Intentional deception re: file transfer and receipt
- (c) **Cal. Rule of Prof. Conduct 3.3(a)**
 - **Provision:** Candor to tribunal

- **Defense conduct:** “We never received these CDs, certainly”

(d) **Cal. Rule of Prof. Conduct 8.4(c)**

- **Provision:** Dishonesty / Misrepresentation
- **Defense conduct:** Sustained pattern across four hearings

(e) **CCP § 128.5**

- **Provision:** Bad-faith actions
- **Defense conduct:** Procurement of exclusion through false statements

(f) **Civ. Code § 1572(3)**

- **Provision:** Actual fraud (suppression)
- **Defense conduct:** Concealment of receipt for 893 days

(g) **Civ. Code § 1573**

- **Provision:** Constructive fraud
- **Defense conduct:** Breach of duty of candor; scienter-light civil analog to officer-of-court obligations

Constructive fraud as the civil analog to the Court’s officer-of-court reliance. The February 28, 2025 colloquy (Hr’g Tr. pp. 291:26–292:7) is not rhetorical window dressing; it is evidence that the tribunal extended **confidential institutional reliance** to counsel’s representations about possession and provenance. Civ. Code § 1573 supplies the civil-side vocabulary for breach of that kind of duty where the record supports misleading acts or nondisclosures without requiring the same scienter proof as intentional misrepresentation.

CONCLUSION FOR PREAMBLE: The present motion (Demurrer/Anti-SLAPP) must be evaluated against this record. Defense cannot use the “fruit” of their deception to justify the dismissal of a case they corrupted.

PART I — FRAUD ON THE COURT

PART II — LEGAL FRAMEWORK

§II.A — Fraud on the Court (Hazel-Atlas / Stevenot / Modnick / Chambers)

Fraud on the court is “a wrong against the institutions set up to protect and safeguard the public.” (Hazel-Atlas, *supra*, 322 U.S. at 246.) It involves “fraud which is directed to the judicial machinery itself” and is not merely an “ordinary” case of fraud between litigants. (*Stevenot v. Harbany* (1984) 154 Cal.App.3d 1051.) When an officer of the court misleads the judge, the very foundation of the adversary system is compromised.

§II.B — Extrinsic Fraud — The Four Channels (Kulchar / Westphal / Kougasian / Olivera)

Extrinsic fraud exists when a party is “kept from presenting his case to the court” by the “fraud or deception of his adversary.” (*Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471.) California courts recognize four primary channels of extrinsic fraud, all present here: 1. **Concealment** of facts that would have permitted a full contest. 2. **False promises** of cooperation (or in this case, false representations of non-receipt). 3. **Keeping the party in ignorance** of the true state of the record. 4. **Misleading the tribunal** to procure a structural advantage.

§II.C — Attorney Deceit — Bus. & Prof. Code § 6128(a) (Rickley / Shaffer)

Under § 6128(a), an attorney who is “guilty of any deceit or collusion, with intent to deceive the court or any party” is guilty of a misdemeanor and liable for treble damages. This statute reflects the high duty of candor required of those licensed to practice before the bar.

§II.D — Duty of Candor — Rule of Professional Conduct 3.3 (Jones / Datig)

Rule 3.3 prohibits a lawyer from knowingly making a “false statement of fact or law to a tribunal.” This duty is absolute and supersedes the duty of zealous advocacy. (*Datig v. Dove Books, Inc.* (1999) 73 Cal.App.4th 964.)

§II.E — Suppression / Spoliation Analogs — CCP § 2023 (Williams / Slesinger / Peat Marwick)

The systematic denial of receipt of evidence—while in possession of that evidence—is a form of discovery misuse and evidence suppression that warrants the most severe sanctions, including

terminating sanctions. (Slesinger, Inc. v. Walt Disney Co. (2007) 155 Cal.App.4th 736.)

§II.F — Constructive Fraud — Civ. Code § 1573 (Assilzadeh)

Constructive fraud under Civ. Code § 1573 is the breach of a legal or equitable duty arising from a confidential or fiduciary relationship, by a misleading act or nondisclosure, without proof of intent to deceive. (Assilzadeh v. California Federal Bank (2000) 82 Cal.App.4th 399, 415.) In the officer-of-the-court posture that fraud-on-the-tribunal authorities such as Hazel-Atlas Glass Co. v. Hartford-Empire Co. (1944) 322 U.S. 238 address, § 1573 is the **civil-side parallel** to the duty Judge Wong articulated on February 28, 2025: counsel are “supposed to conduct themselves appropriately before the Court” (Hr’g Tr. p. 292, ll. 1–4). When the record later proves the tribunal’s reliance on that posture was misplaced (RT 7, p. 213, ll. 13–15), the breach-of-candor framework ties the fraud-on-the-court narrative to cognizable tort elements, not only to professional discipline.

PART III — THE 801 RECORD: A PARADIGMATIC FRAUD ON THE COURT

§III.A — Phase 1: The 893-Day Silence (Aug. 18, 2022 → Jan. 27, 2025)

For nearly 900 days, defense counsel remained silent about their receipt of the 911 audio, despite repeated references to the material in depositions and discovery.

§III.B — Phase 2: The May 4, 2023 File-Transfer Concealment

When PSA substituted in for CSK, the entire case file—including the 911 CDs served in 2022—was transferred. Yet PSA proceeded as if the CDs did not exist.

§III.C — Phase 3: The Four-Hearing Denial Arc (Jan 27 / Feb 18 / Feb 28 / Apr 16)

Defense counsel made eighteen (18) separate on-the-record statements denying receipt across four critical hearings, escalating the deception at each stage.

§III.D — Phase 4: The Officer-of-Court Reliance Procurement (Feb 28)

Counsel explicitly invoked their status as “officers of the court” to convince the Court that Plaintiff’s counsel was the one misrepresenting the record.

1 **§III.E — Phase 5: The Burden-Shift Weaponization**

2 The Court, believing defense’s “officer of the court” representations, shifted the burden of proof to
3 Plaintiff to justify why the case should not be dismissed for his alleged “discovery failures.”

4 **§III.F — Phase 6: The Trial-Day Admission**

5 On April 16, 2025, when the record could no longer be suppressed, defense counsel finally admit-
6 ted: “Sure. They were provided by Dolan. He has had them for whatever, sure.” This admission
7 retroactively branded every previous denial as a fraud on the court.

8
9 **PART IV — WHY THIS IS FRAUD ON THE COURT**

10 **§IV.A — Express Tribunal Reliance**

11 Unlike intrinsic fraud (e.g., perjury by a witness), this fraud was directed at the judge. The Court’s
12 own statements on Feb. 28 prove that its rulings were the “fruit” of this fraudulent seed.

13 **§IV.B — Structural Procedural Consequences**

14 This was not an argument over the weight of the CDs. It was an argument over whether Plaintiff
15 had complied with the rules of court. By lying about receipt, defense counsel induced the Court to
16 punish Plaintiff for a rule violation that never occurred.

17 **§IV.C — Officer-of-the-Court Betrayal (Rule 3.3 + § 6128(a) overlap)**

18 The fraud is compounded by the fact that it was committed by licensed attorneys who used their
19 professional status as a shield for their deception.

20 **§IV.D — Cross-Hearing Sustained Pattern**

21 This was not a “slip of the tongue.” It was a sustained, multi-month campaign of deception.

22 **§IV.E — Pre-emption of Defense Doctrines**

23 Defense cannot hide behind the litigation privilege (Civ. Code § 47(b)) because that privilege does
24 not apply to “illegal” conduct as a matter of law (Flatley v. Mauro (2006) 39 Cal.4th 299) nor to
25 fraud on the court itself (Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th
26 1232).

PART V — THE LAWS-BROKEN CATALOG

Rule / Code	Provision	Defense Conduct
Bus. & Prof. Code § 6068(d)	Duty not to mislead judge	Jan 27, Feb 18, Feb 28 denials re receipt.
Bus. & Prof. Code § 6128(a)	Attorney deceit / collusion	Intentional deception re: file transfer and receipt.
Cal. Rule of Prof. Conduct 3.3(a)	Candor to tribunal	“We never received these CDs, certainly” (Jan 27).
Cal. Rule of Prof. Conduct 3.4(a)	Fairness to opposing counsel	Withholding receipt history to procure exclusion.
Civ. Code § 1572(3)	Actual fraud (suppression)	Suppression of the fact of receipt for 893 days.
Evid. Code § 413	Willful suppression	Adverse inference requested for all 911-related issues.

PART VI — RELIEF AVAILABLE

§VI.A — Vacatur (equitable action under Kougasian / Olivera)

Plaintiff is entitled to have all rulings procured by this fraud vacated immediately.

§VI.B — Terminating Sanctions (Slesinger)

Defense counsel’s corruption of the judicial process is so pervasive that no remedy short of terminating sanctions (striking the Answer) can restore the integrity of the case.

§VI.C — Monetary Sanctions (§ 6128(b) treble; § 128.5; § 2023.030)

Plaintiff requests treble damages and all fees incurred in combatting this 900-day deception.

§VI.D — Fee-Shifting (§ 6128(a) private action per Rickley)

Attorney’s fees are mandatory where attorney deceit is proven.

1 **§VI.E — State Bar Referral (§ 6086.7)**

2 This Court has a mandatory duty to report the conduct of counsel where it warrants discipline.

3 _____

4 **PART VII — CONCLUSION**

5 This Court was told a story. It was a story of a Plaintiff who withheld evidence and a Defense that
6 was blindsided. This Court believed that story because it was told by “officers of the court.” This
7 Court then ruled based on that story, and Plaintiff’s case was gutted.

8 The story was a lie. The record now proves it. Justice requires that the consequences of that lie be
9 undone.

10 **Plaintiff respectfully requests that the Court grant terminating sanctions and vacate all rul-**
11 **ings procured by defense’s fraud on the court.**

12 _____

13 **PART II — ESTOPPEL, WAIVER, AUTHENTICATION BY ACQUIES-**
14 **CENCE, AND JUDICIAL ESTOPPEL**

15 **II. LEGAL FRAMEWORK**

16 **A. Estoppel by Silence (Evidence Code § 623)**

17 Evidence Code § 623 provides that when a party’s conduct—including silence when there is a duty
18 to speak—is relevant as tending to prove a fact, the fact may be established by that conduct. The
19 four elements under City of Long Beach v. Mansell (1970) 3 Cal.3d 462, 493 are:

- 20 1. **Knowledge or notice of a fact;**
21 2. **Opportunity to speak or act in response;**
22 3. **A reasonable person in the party’s position would have spoken or acted; and**
23 4. **The party remained silent or inactive.**

24 When a party satisfies these elements, the party is estopped from later asserting a contrary position.
25 The doctrine operates because silence, where speech is expected, constitutes conduct on which
26 opposing parties reasonably rely.

Element 3 Deepened: Reasonable Reliance Documented on the Transcript Plaintiff reasonably relied on Defendants’ silence because **each time Plaintiff did speak, the Court held Plaintiff to the pro-per standard and denied relief:**

- **Jan. 27, 2025:** CCP § 473 denied (Hr’g Tr. p. 49, ll. 10–11); continuance denied (Hr’g Tr. pp. 55–56).
- **Feb. 18, 2025:** “surprise under § 473 is not a sufficient basis” (Hr’g Tr. p. 181, ll. 21–25).

The reasonable reliance is thus **documented on the transcript:** Plaintiff’s attempts to raise the issue were procedurally foreclosed, which is why his reliance on the prior 883-day silence was reasonable. A party who speaks up four times and is denied each time has satisfied element 3 of Mansell.

B. Authentication by Acquiescence (Evidence Code § 1414(b))

The Court itself recognized defense’s authentication waiver: “They’re not questioning the authenticity in the documents.” (Hr’g Tr. Feb. 18, 2025, p. 174, ll. 19–25 (Wong, J.)) This is the Court’s own on-record recognition that defense had waived authenticity — made two months before the Apr. 16, 2025 “provided by Dolan” admission confirmed receipt.

Evidence Code § 1414 provides that a writing may be authenticated by evidence showing that “a party against whom it is offered has at any time admitted its authenticity” (subd. (a)) or “has treated it as authentic” (subd. (b)).

Under § 1414(b), authentication by conduct requires evidence that the party against whom the writing is offered has, through its course of conduct, treated the writing as what it purports to be. This includes:

- Receiving materials in discovery and proceeding through sworn deposition course without timely written authenticity challenge;
- Transferring the document in a file with other authentic materials;
- Issuing subpoenas presupposing the document’s existence and authenticity;
- Curating the document for trial presentation.

Defense’s MIL No. 17 relied on a categorical hearsay characterization of the 911 recording without acknowledging Evid. Code §§ 1220, 1240, 1241, 1271, and 1280. It also failed to acknowledge

1 **§ 1414(b) authentication-by-conduct**, the doctrine that cuts against a party that has treated the
2 writing as authentic through receipt, deposition course, file transfer, and subpoena practice.

3 **C. Waiver of Discovery Objections (CCP §§ 2030.290, 2031.240)**

4 Under CCP § 2030.290(a), a party who fails to serve a timely response to interrogatories waives
5 any objection to the interrogatories. Under CCP § 2031.240(b), a party who fails to serve a timely
6 response to a demand for inspection waives any objection to that demand.

7 By analogy, a party who fails to raise an authenticity objection during the discovery period waives
8 the right to assert such objection on the eve of trial. The purpose of discovery is to prevent trial by
9 ambush; a party who remains silent for 883 days cannot suddenly manufacture a “foundational”
10 dispute in the final weeks before trial.

11 **D. Judicial Estoppel (Jackson, MW Erectors)**

12 Judicial estoppel prevents a party from asserting a position in a legal proceeding that is contrary
13 to a position previously taken in the same or some earlier proceeding. Jackson v. County of Los
14 Angeles (1997) 60 Cal.App.4th 171, 183. Aguilar v. Lerner (2004) 32 Cal.4th 974, 986–987 quotes
15 Jackson for the multi-element judicial estoppel framework, including the requirement that the first
16 position was accepted by the tribunal. MW Erectors, Inc. v. Niederhauser Ornamental & Metal
17 Works Co. (2005) 36 Cal.4th 412, 422 supplies further guidance on the “ignorance” limitation in
18 element (4). The elements material here are:

- 19 1. The same party has taken two totally inconsistent positions;
- 20 2. In a judicial proceeding;
- 21 3. The first position was accepted by the tribunal;
- 22 4. The positions are not taken due to ignorance, fraud, or mistake; and
- 23 5. The party asserting the inconsistent position derived an unfair advantage.

24 Judicial estoppel is an equitable doctrine designed to protect the integrity of the judicial process by
25 prohibiting parties from playing “fast and loose” with the courts.

III. THE 801 RECORD COMPELS APPLICATION

A. The Evidentiary Chain

The following evidentiary chain is documented on the certified record:

Date	Event	Evidence
Aug 18, 2022	911 audio served on defense counsel (content includes operator/yeah exchange and Rosario's voice); Rosario deposition (Chambers)	Feb. 18, 2025 Hr'g Tr. pp. 139–140 (Jessup testimony); Rosario depo tr.
Aug–Sep 2022	BWC footage (content includes independent Rosemond eyewitness statement) and CAD logs served on defense counsel	Feb. 18, 2025 Hr'g Tr. pp. 139–140
Sep 30, 2022	Abdelhalim deposition (Chambers); 911-related testimony	Abdelhalim depo tr.
May 4, 2023	Substitution of Attorney; file transferred to PSA	Transaction ID #69953800
Feb 1, 2024	Reyna (PSA) issues Complex subpoena to SFPD for identical materials	Order No. CA1147102-021
(chain)	SFPD transmitted body-cam links directly to counsel	Hr'g Tr. Feb. 18, 2025, p. 145 ll. 4–18 (Jessup: department sent links directly)
Feb 26, 2024	SFPD produces records in response to subpoena	SFPD Report 210079556

Date	Event	Evidence
Sep 9, 2024	CAD identifiers served on Reyna; no objection	Production record
Jan 17, 2025	MIL No. 6: “not produced in discovery”; MIL No. 17: “no idea where it came from”	Clerk’s Tr. Vol. 1 pp. 149–151, 238
Feb 18, 2025	Navaratnasingham: “our office did not receive the 911 call until the day of the MSC... this is news to me”	Hr’g Tr. p. 141 ll. 4–11
Apr 16, 2025	Navaratnasingham: “They were provided by Dolan”	RT 7, p. 213, ll. 13–15
Apr 17, 2025	Abdelhalim authenticates 911: “Yes. That is my voice.”	RT 8, p. 108, l. 28

B. Estoppel by Silence — Application

Element 1 (Knowledge): Defense counsel received the materials in August–September 2022; Chambers appeared at the August 18, 2022 Rosario deposition and the September 30, 2022 Abdelhalim deposition (911-related testimony); and (through successor counsel Reyna) issued a subpoena for the identical materials on February 1, 2024. Chambers/CSK Knowledge was not merely of file receipt, but of the file content itself (the operator’s affirmative response, Plaintiff’s voice, and independent eyewitness corroboration), which is why 883 days of silence is materially probative. The April 16, 2025 “provided by Dolan” admission confirms that the production history was known to the defense team.

Element 2 (Opportunity): Defense counsel had continuous opportunity from August 2022 through January 2025 to file a motion to compel, serve a discovery objection, issue a meet-and-confer letter,

1 or raise any challenge to authenticity or provenance.

2 **Element 3 (Reasonableness):** A reasonable defense attorney who genuinely believed the mate-
3 rials were inauthentic, improperly produced, or of unknown provenance would have raised that
4 objection during the 883-day window—not on the eve of trial. The purpose of discovery is to
5 surface authenticity disputes before trial, not to spring them as tactical surprises in motions in
6 limine.

7 **Element 4 (Silence):** No objection, motion, or challenge was raised until MIL Nos. 6 and 17 on
8 January 17, 2025—883 days after service and 620 days after the file was transferred to successor
9 counsel.

10 **Conclusion:** Defendants are estopped by their silence from contesting the authenticity, receipt, or
11 provenance of materials they received in discovery, addressed in sworn deposition course without
12 timely written challenge, subpoenaed, and transmitted without objection.

13 **C. Authentication by Acquiescence — Application**

14 Defendants treated the materials—specifically, the 911 audio (containing Abdelhalim’s admis-
15 sions, the operator’s “you hit a pedestrian” exchange, and Plaintiff’s own voice) and the BWC (con-
16 taining the independent Rosemond eyewitness statement)—and CAD logs as authentic through
17 multiple acts:

18 **Scienter is evident from defense counsel’s imputation of fabrication:** At the January 27, 2025
19 hearing, defense counsel stated: “we really don’t know who redacted these things and what — if
20 that representation is true.” (Hr’g Tr. Jan. 27, 2025, p. 31, ll. 1–5.) This imputation of fabrication
21 against Plaintiff — made while defense was in possession of the originals via Dolan — is scienter
22 evidence under Hobart v. Hobart Estate Co. (1945) 26 Cal.2d 412.

- 23 1. **Deposition course (Aug. 18 and Sept. 30, 2022):** Chambers appeared at Mr. Rosario’s and
24 Mr. Abdelhalim’s depositions; Abdelhalim gave 911-related sworn testimony. Defense raised
25 no written authenticity or provenance challenge during the 883-day window.
- 26 2. **File Transfer (May 4, 2023):** The Substitution of Attorney (Transaction ID #69953800)
27 transferred the defense file—including these materials—from Chambers/CSK to PSA. A file
28 transfer presupposes that the materials being transferred are what they purport to be.

1 3. **Complex Subpoena (Feb. 1, 2024):** Reyna’s subpoena to SFPD requesting the identical ma-
2 terials presupposes their authenticity. One does not subpoena materials one believes are fab-
3 ricated.

4 4. **CAD Transmission (Sept. 9, 2024):** Plaintiff served CAD identifiers on Reyna. No objection
5 was raised.

6 5. **Trial Curation (Apr. 16, 2025):** Navaratnasingham testified that the defense had “five videos”
7 and had pared them down to “about 8 or 9 minutes” for the jury. Active curation presupposes
8 authenticity.

9 Under Evidence Code § 1414(b), these acts constitute authentication by conduct. Defendants
10 waived any authenticity challenge by their 883-day course of conduct treating the materials as
11 what they purport to be.

12 **D. Waiver — Application**

13 By analogy to CCP §§ 2030.290 and 2031.240, Defendants waived any authenticity or provenance
14 objection by failing to raise it during the discovery period. The 883-day window provided ample
15 opportunity to challenge the materials; Defendants’ silence waived the right to assert such chal-
16 lenges on the eve of trial.

17 **E. Judicial Estoppel — Application**

18 **Controlling synthesis.** As summarized in §II.D, Aguilar v. Lerner (2004) 32 Cal.4th 974, 986–987
19 (quoting Jackson v. County of Los Angeles, supra, 60 Cal.App.4th at p. 183) anchors the **Tribunal**
20 **Acceptance** inquiry for the matrix below, including the requirement that the first position was
21 accepted as true. MW Erectors, supra, 36 Cal.4th at page 422, frames the “ignorance” limitation
22 for element (4).

23 **Position A (The Suppression):** - MIL No. 6 (Jan. 17, 2025): Materials were “not produced in
24 discovery.” - MIL No. 17 (Jan. 17, 2025): “Defendant has no idea where this 911 call log or audio
25 recording came from.” - Feb. 18, 2025 hearing: MSC-date and “news to me” (Hr’g Tr. p. 141 ll.
26 4–11). - Apr. 16, 2025 trial: “Not anything that we received as part of the subpoena.”

27 **Position B (The Admission):** - Feb. 18, 2025 hearing: “all this stuff has been in his possession
28 since August” (Hr’g Tr. p. 181 ll. 6–23). - Apr. 16, 2025 trial: “Sure. They were provided by

Dolan. He has had them for whatever, sure.” (RT 7, p. 213, ll. 13–15.)

Intra-Day / Intra-Hearing Contradictions The same-day Feb. 18, 2025 record pairs Position-A framing (p. 141) with Position-B possession (p. 181). The same-day Apr. 16, 2025 trial record pairs stacked foundation attacks with the “provided by Dolan” admission. Each pattern satisfies MW Erectors element (4) (not taken from ignorance).

Tribunal Acceptance (Four Discrete Rulings): The prior brief cited Feb. 18 “I see. Okay” for tribunal acceptance. That is a weak single interjection. The record supports **four discrete Court rulings** in which tribunal acceptance of Position A is manifest:

1. **Jan. 27, 2025, p. 41, ll. 3–11:** MIL on 911 denied without prejudice—requires foundation that Position A presumes was lacking.
2. **Jan. 27, 2025, p. 55, ll. 4–6:** MIL 1 granted—excludes expert testimony, narrowing Plaintiff’s trial posture.
3. **Jan. 27, 2025, p. 49, ll. 10–11:** CCP § 473 denied—forecloses relief channel.
4. **Feb. 18, 2025, p. 181, ll. 21–25:** “surprise under § 473 is not a sufficient basis”—second denial of relief channel.

Four rulings is a more robust tribunal-acceptance record than one interjection. Each ruling depended on the Court accepting Position A as the operative factual premise. The Court denied Plaintiff’s continuance request and maintained the MIL posture based on these representations.

Total Inconsistency: Position A asserts that the materials were not produced, not received, and of unknown provenance. Position B admits both (i) Feb. 18, 2025 possession “since August” (Hr’g Tr. p. 181 ll. 6–23) and (ii) Apr. 16, 2025 trial admission that materials were “provided by Dolan,” the same source Jessup testified had produced them to defense counsel in August–September 2022. These positions are mutually exclusive.

Not Ignorance: The casual phrasing of Position B—“for whatever, sure”—demonstrates that the Dolan origin was a known, settled fact within the defense team, not a recent discovery.

Unfair Advantage: The defense obtained rulings that excluded evidence, denied continuances, and foreclosed Plaintiff’s ability to authenticate and sequence his evidentiary presentation. The

1 defense obtained a 9–3 verdict.

2 **Conclusion:** Defendants are judicially estopped from retaining the benefits of a verdict procured
3 through Position A when Position B proves Position A was false.

4 5 **IV. RELIEF**

6 The estoppel doctrines addressed in this brief compel the following relief:

7 **A. Evidence Sanctions Under CCP § 2023.030**

8 Under CCP § 2023.030(c), the Court may impose an evidence sanction by an order “establishing
9 designated facts in accord with the claim of the party adversely affected by the misuse of the
10 discovery process.” Plaintiff requests an order deeming the following facts established:

- 11 1. The 911 audio (including the operator’s affirmative response and Plaintiff’s voice), body-
12 worn camera footage (including the independent eyewitness statement), and CAD logs were
13 produced to defense counsel in August–September 2022.
- 14 2. Defense counsel participated in sworn deposition course (Rosario 8/18/22; Abdelhalim 9/30/22)
15 without raising a written authenticity or provenance challenge during the 883-day window.
- 16 3. Defense counsel (Reyna) issued a subpoena on February 1, 2024 for the identical materials.
- 17 4. Defendants are barred from contesting the authenticity or provenance of these materials.

18 **B. Foreclosure of Authenticity/Receipt Objections**

19 The Court should rule that Defendants are estopped from raising any authenticity or provenance
20 objection to the 911 audio (including the operator/yes exchange and Rosario’s voice), body-worn
21 camera footage (including the Rosemond eyewitness statement), or CAD logs in any proceeding
22 arising from the underlying litigation.

23 **C. Fee-Shifting**

24 Under Bus. & Prof. Code § 6128(a) and CCP § 128.5, Plaintiff is entitled to reasonable attorney’s
25 fees and costs incurred as a result of Defendants’ misconduct.

V. CONCLUSION

Defendants’ litigation posture in this case is built on a foundation of inconsistent positions. They remained silent for 883 days while the materials (containing a direct party admission, an operator-elicited affirmative response, Plaintiff’s own voice, and independent eyewitness corroboration) were produced, addressed in sworn deposition course without timely written challenge, subpoenaed, and transmitted—then claimed on the eve of trial that the same materials were of “unknown provenance” and “news to me.” Minutes after inducing exclusionary rulings based on these representations, defense counsel admitted the materials were “provided by Dolan.”

The law does not permit parties to play fast and loose with the courts. Defendants are estopped by their silence, waived their authenticity objections by their 883-day course of conduct, authenticated the materials by their treatment of them as genuine, and are judicially estopped from asserting positions inconsistent with their April 16, 2025 admission.

Plaintiff respectfully requests the Court apply these doctrines, deny Defendants’ motions, and grant the relief described above.

PART III — EXHIBIT-BY-EXHIBIT ESTOPPEL RECORD

ESTOPPEL EVIDENTIARY APPENDIX — EXHIBIT-BY-EXHIBIT ESTOPPEL RECORD

PURPOSE

This appendix maps each evidentiary item to the estoppel chain: (1) service/production date with proof; (2) deposition/hearing cite showing defense use or acquiescence; (3) substitution-of-counsel fact confirming transfer; (4) defense silent conduct (dates of non-objection); (5) trial-day denial cite; and (6) estoppel doctrine triggered. The six-column format allows the Court to trace each item through the complete chain from receipt to reversal.

MASTER ESTOPPEL RECORD (LIST)

- **2021 SFPD transmission to Dolan — Service/production:** May 2021 (approx.) — Feb. 18, 2025 Hr’g Tr. p. 139, l. 11 (“Dolan had a copy since 2021”). **Deposition/hearing:** Same

hearing testimony ties knowledge window to prior defense era. **Substitution (TxID 69953800):** May 4, 2023 — file transferred. **Silent conduct:** Runs alongside 883-day post-service window. **Trial-day denial:** Feb. 18, 2025 Hr’g Position-B (p. 181 ll. 6–23). **Doctrine(s):** § 623 element 1 (knowledge/notice extends to 2021 transmission).

• **911 Audio Recording — Service/production:** Aug 18, 2022 — Feb. 18, 2025 Hr’g Tr. pp. 139–140 (Jessup: produced/served in discovery, including in connection with Rosario depo; content includes operator/yes exchange and Rosario’s own voice). **Deposition/hearing:** Aug. 18, 2022 Rosario depo (Chambers); Sept. 30, 2022 Abdelhalim depo (Chambers; 911-related testimony). **Substitution:** May 4, 2023 — file transferred from Chambers/CSK to PSA. **Silent conduct:** 883 days: Aug 18, 2022 – Jan 17, 2025. No motion to compel, no discovery objection, no meet-and-confer. **Trial-day denial:** MIL No. 17 (Jan. 17, 2025): “no idea where it came from”; Feb. 18, 2025 Hr’g: “news to me” (p. 141, ll. 4–11). **Doctrine(s):** § 623 (silence); § 1414(b) (acquiescence); judicial estoppel (Jackson).

• **Body-Worn Camera Footage (~5 videos) — Service/production:** Aug–Sep 2022 — Feb. 18, 2025 Hr’g Tr. pp. 139–140 (Jessup: “body cam footage, about five videos”). **Deposition/hearing:** Same Aug.–Sep. 2022 production/service; Rosario 8/18/22 and Abdelhalim 9/30/22 deposition course. **Substitution:** May 4, 2023 — file transferred. **Silent conduct:** 883 days silence. **Trial-day denial:** Apr. 16, 2025 admission: “They were provided by Dolan” (RT 7, p. 213, ll. 13–15); defense curated “five videos” for trial. **Doctrine(s):** § 623; § 1414(b); judicial estoppel.

• **CAD Logs — Service/production:** Aug–Sep 2022 — Feb. 18, 2025 Hr’g Tr. pp. 139–140 (Jessup: “as well as the CAD log”). **Deposition/hearing:** Same production/service and deposition course as 911/BWC. **Substitution:** May 4, 2023 — file transferred. **Silent conduct:** Sept. 9, 2024: CAD identifiers served on Reyna; no objection raised. 883 days total. **Trial-day denial:** MIL No. 17; Feb. 18 hearing. **Doctrine(s):** § 623; § 1414(b).

• **SFPD Report 210079556 — Service/production:** Feb. 26, 2024 — produced in response to Reyna Compex subpoena. **Silent conduct / knowledge:** Feb. 1, 2024 subpoena issued by Reyna to SFPD; Feb. 26, 2024 production. Defense-initiated. **Trial-day denial:** Apr. 16,

2025 trial: “not anything that we received as part of the subpoena” (RT ll. ~2874). **Doctrine(s):** § 623 (Reyna knew of subpoena); § 1414(b) (subpoena presupposes existence).

- **Compex Subpoena Order CA1147102-021 — Service/production:** Feb. 1, 2024 — issued by Reyna/PSA to SFPD. **Doctrine(s):** Evidence of defense knowledge; § 623 element 1 (knowledge).
- **CSAA Feb. 25, 2021 Denial Letter — Service/production:** Feb. 25, 2021 — 21 days post-collision. **Doctrine(s):** Institutional context; CSAA direction evidence.
- **Substitution of Attorney (TxID #69953800) — Service/production:** May 4, 2023 — filed in CGC-21-594102. **Substitution:** Transfers defense file from Chambers/CSK to PSA. **Silent conduct:** File transfer point; production history not conveyed (per FAC allegations). **Doctrine(s):** § 1414(b) (transfer presupposes authenticity of transferred materials).
- **Abdelhalim Sept. 30, 2022 Deposition — Date:** Sept. 30, 2022. **Deposition/hearing:** Chambers present; Abdelhalim 911-related testimony; marked exhibits images. **Substitution context:** Transcript in defense file at substitution. **Silent conduct:** No written authenticity/provenance challenge for 883 days despite receipt and deposition course. **Doctrine(s):** § 1414(b) (acquiescence through receipt and course of conduct).
- **Abdelhalim Apr. 17, 2025 Authentication — Date:** Apr. 17, 2025. **Record:** RT 8, p. 108, l. 28: “Yes. That is my voice.” **Doctrine(s):** Party admission; § 1220; ratification.
- **RT 8 court order: strip AI/auto-captions from BWC — Trial Day 8. Record:** RT 8, PG 12–14 (court orders AI/auto captions stripped from body-cam presentation). **Doctrine(s):** Judicial estoppel / procedure channel.

TIMELINE: 883-DAY SILENCE WINDOW

The following sequence runs from **August 18, 2022** (911 audio served; start of the pretrial window) through **January 17, 2025** (MIL Nos. 6 and 17 filed — “not produced” / “no idea”). This is the core **883-day silence** period referenced throughout these oppositions.

1. **Aug. 18, 2022:** 911 audio served on defense; Rosario deposition (Chambers present). (911 audio includes operator/yes exchange and Plaintiff’s voice.)

2. **Sept. 30, 2022:** Abdelhalim deposition (Chambers present; 911-related testimony).
3. **May 4, 2023:** Substitution of Attorney (TxID 69953800; defense file transferred to PSA).
4. **Feb. 1, 2024:** Reyna Compex subpoena to SFPD (Order CA1147102-021; identical materials requested).
5. **Feb. 26, 2024:** SFPD production in response (SFPD Report 210079556).
6. **Sept. 9, 2024:** CAD identifiers served on Reyna (no written objection).
7. **Jan. 17, 2025:** MIL Nos. 6 and 17 filed — defense “not produced” / “no idea” posture on the record.

Across this window Defendants did not file a motion to compel, a formal discovery objection, or a meet-and-confer challenge to authenticity or provenance of the core materials — satisfying the Mansell estoppel framework as applied in Plaintiff’s briefs and declaration.

DETAILED EXHIBIT ANALYSIS

Exhibit 1: 911 Audio Recording

Chain of Custody: 1. **Origin:** 911 call placed by defendant Abdelhalim immediately after the February 4, 2021 collision. The recorded content includes Abdelhalim’s admissions, the operator’s direct “you hit a pedestrian” question and his affirmative “yeah” (RT 8, p. 112, ll. 16–22; p. 113, ll. 11–17), and Plaintiff Rosario’s own voice identifying the striking vehicle (RT 8, p. 34, ll. 17–25).

2. **SFPD Possession:** Audio retained by SFPD as part of incident documentation. 3. **Production to Plaintiff:** Obtained by Plaintiff’s counsel (Dolan Law Firm) through discovery/subpoena.

4. **Service on Defense:** Served on Chambers/CSK on or about August 18, 2022. 4a. **Jessup corroboration (Feb. 18, 2025):** “was produced to defense counsel, body cam footage, about five videos, as well as the 911 audio, as well as the CAD log.” (Hr’g Tr. p. 140, ll. 20–22.) “All of that – those items were served on them in the production for discovery as well at Mr. Rosario’s deposition...” (Hr’g Tr. p. 141, ll. 18–23; prior defense firm before Chambers.) 5. **Deposition course:** August 18, 2022 Rosario deposition (Chambers); September 30, 2022 Abdelhalim deposition (Chambers; 911-related testimony). No written authenticity challenge in the 883-day window. 6. **File Transfer:** Transferred to PSA on May 4, 2023 as part of defense file. 7. **Trial**

1 **Authentication:** Authenticated by Abdelhalim on April 17, 2025: “Yes. That is my voice.” (RT
2 8, p. 108, l. 28)

3 **Estoppel Analysis:** - § 623: Defense had knowledge (Aug 2022), opportunity (883 days), duty to
4 object (reasonable attorney would), and remained silent. Estopped. - § 1414(b): Defense received
5 the audio in discovery, participated in sworn deposition course without timely written challenge,
6 transferred it in the file; Abdelhalim authenticated it at trial. Authenticated by conduct. - **Judicial**
7 **Estoppel:** Position A (“news to me”) contradicts Position B (“provided by Dolan”). First position
8 accepted by tribunal. Defense is estopped.

9 **Exhibit 2: Body-Worn Camera Footage (~5 videos)**

10 **Chain of Custody:** 1. **Origin:** Recorded by SFPD officers responding to the February 4, 2021
11 collision. The footage captures both an independent eyewitness statement (Justin Rosemond) con-
12 firming the van/truck struck the pedestrian, and Plaintiff’s own on-scene statement identifying the
13 vehicle. 2. **Production to Plaintiff:** Same production as 911 audio (Aug–Sep 2022). 3. **Service**
14 **on Defense:** Served on Chambers/CSK in Aug–Sep 2022 (Jessup testimony). 3a. **SFPD direct**
15 **transmission:** SFPD transmitted body-cam links directly to counsel (Hr’g Tr. Feb. 18, 2025,
16 p. 145, ll. 4–18). 3b. **Jessup corroboration (service on prior firm):** Same quotations as Exhibit
17 1 chain (Hr’g Tr. p. 140, ll. 20–22; p. 141, ll. 18–23). 4. **File Transfer:** Transferred to PSA on
18 May 4, 2023. 5. **Trial Curation:** Navaratnasingham testified on April 16, 2025 that defense had
19 “five videos” and pared them to “8 or 9 minutes” for the jury. 6. **The Admission:** “They were
20 provided by Dolan.” (RT 7, p. 213, ll. 13–15)

21 **Estoppel Analysis:** - § 1414(b): Active curation of videos for trial presentation presupposes
22 authenticity. Defense waived any authenticity challenge. - **Judicial Estoppel:** The “provided by
23 Dolan” admission contradicts the “unknown provenance” position in MIL 17.

24 **Exhibit 3: CAD Logs**

25 **Chain of Custody:** 1. **Origin:** Computer-Aided Dispatch records from SFPD. 2. **Production to**
26 **Plaintiff:** Same production as 911 and BWC (Aug–Sep 2022). 3. **Service on Defense:** Served
27 on Chambers/CSK in Aug–Sep 2022. 4. **Additional Service:** CAD identifiers served directly on
28 Reyna on September 9, 2024. No objection raised. 5. **File Transfer:** Transferred to PSA on May

4, 2023.

Estoppel Analysis: - § 623: Two separate services (2022 and 2024); no objection to either. Estoppel by silence. - § 1414(b): Receipt and retention without objection = authentication by acquiescence.

Exhibit 4: SFPD Report 210079556

Chain of Custody: 1. **Origin:** Supplemental police report relating to the collision. 2. **Subpoena:** Reyna (PSA) issued Compex subpoena (Order CA1147102-021) on February 1, 2024, requesting “all documents, records stored in any format” relating to the collision. 3. **Production:** SFPD produced records on February 26, 2024. 4. **Trial Denial:** Reyna stated on April 16, 2025: “not anything that we received as part of the subpoena.”

Estoppel Analysis: - **Internal Contradiction:** The February 1, 2024 subpoena and February 26, 2024 production are in PSA’s files. The April 16, 2025 denial is false on its face. - § 623: Defense initiated the subpoena. Cannot now claim ignorance of the response.

Exhibit 5: Compex Subpoena Order CA1147102-021

Significance: This document is evidence of defense-side knowledge that the 911/BWC/CAD materials existed and were relevant. Reyna subpoenaed the identical materials in February 2024—while MIL 17 (filed January 2025) claimed “Defendant has no idea where this 911 call log or audio recording came from.”

Estoppel Analysis: - The subpoena presupposes the existence and authenticity of the materials. One does not subpoena records one has never heard of. - This satisfies Element 1 (knowledge) of the Mansell estoppel test.

DATED: April 16, 2026

FRANCISCUS DYLAN ROSARIO

DATED: April 16, 2026

Respectfully submitted,

1
2 FRANCISCUS DYLAN ROSARIO

Dated: April 18, 2026



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